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No. 25-8027

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

**UNITED STATES COURT OF APPEALS**
**FOR THE TENTH CIRCUIT**

**ASHLEY WILLEY & SEAN WILLEY**

**Plaintiffs-Appellants,**

v.

**SWEETWATER COUNTY SCHOOL DISTRICT No. 1 BOARD OF TRUSTEES; KELLY MCGOVERN,** Superintendent of Sweetwater County School District No. 1; **NICOLE BOLTON,** Assistant Superintendent & Human Resources Director of Sweetwater County School District No. 1; **KAYCI ARNOLDI,** Director of Student Services of Sweetwater County School District No. 1; **BRYANT BLAKE,** Principal of Black Butte High School,

**Defendants-Appellees.**

Ashley Willey & Sean Willey,

Plaintiffs-Appellants,

Appellate Case No. 25-8027

v.

Sweetwater County School District No. 1 Board of Trustees; Kelly McGovern, Superintendent of Sweetwater County School District No. 1; Nicole Bolton, Assistant Superintendent & Human Resources Director of Sweetwater County School District No. 1; Kayci Arnoldi, Director of Student Services of Sweetwater County School District No. 1; Bryant Blake, Principal of Black Butte High School,

Defendants-Appellees.

On Appeal from the United States District Court for the District of Wyoming
The Honorable Scott W. Skavdahl, District Court Judge
District Court Case Number 23-cv-69-S

---

**ANSWER BRIEF OF APPELLEES BOARD OF TRUSTEES FOR SWEETWATER COUNTY SCHOOL DISTRICT NO. 1, ET AL.**

---

ORAL ARGUMENT IS NOT REQUESTED

**On Appeal from the United States District Court for the District of Wyoming**
**The Honorable Scott W. Skavdahl, District Court Judge**
**District Court Case Number 23-cv-69-S**

L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
*LAMBDIN & CHANEY, LLP*
*4949 S. Syracuse Street, Suite 600*
*Denver, Colorado 80237*
*Facsimile: (303) 799-3700*
*ATTORNEYS FOR APPELLEES*

Telephone: (303) 799-8889

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## STATEMENT OF COUNSEL AS TO ORAL ARGUMENT

Oral argument is not requested or required under Fed. R. App. P. 34(2)(a)-(c) because: (1) the appeal is frivolous; (2) the dispositive issues have been authoritatively decided; and (3) the facts and legal arguments are adequately presented in the briefs and record, and the decisional process would not be significantly aided by oral argument. *See Chung v. Washington Interscholastic Activities Ass'n*, 538 F. Supp. 3d 1170, 1175 (W.D. Wash. 2021) ("When a party has [had] an adequate opportunity to provide the trial court with evidence and a memorandum of law, there is no prejudice [in a refusal to grant oral argument." (quoting *Partridge v. Reich*, 141 F.3d 920, 926 (9th Cir. 1998)).

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## STATEMENT OF PRIOR OR RELATED APPEALS

There are no prior or related appeals.

## JURISDICTIONAL STATEMENT

JURISDICTIONAL STATEMENT

The District does not object to the Willeys' statement of jurisdiction and agrees that this Court has jurisdiction over this appeal.

The District does not object to the Willeys' statement of jurisdiction and agrees that this Court has jurisdiction over this appeal.

## STATEMENT OF ISSUES FOR REVIEW

STATEMENT OF ISSUES FOR REVIEW

1. The District Court appropriately held that no genuine dispute of material fact existed in light of the Willeys' failure to present evidence that there was an official policy regarding the use of preferred names or pronouns or "concealment" of a student's choice from parents during the 2021-22 school year, and that no such use or concealment occurred during the 2022-23 school year when an official policy did exist. Therefore, the Willeys cannot demonstrate their fundamental constitutional rights have been violated.

1. The District Court appropriately held that no genuine dispute of material fact existed in light of the Willeys failure to present evidence that there was an official policy regarding the use of preferred names or pronouns or "concealment" of a student's choice from parents during the 2021-22 school year, and that no such use or concealment occurred during the 2022-23 school year when an official policy did exist. Therefore, the Willeys cannot demonstrate their fundamental constitutional rights have been violated.

2. The District Court correctly determined that the 2022-23 and 2023-24 PNCPs were content neutral rules of general applicability such that Ms. Willey failed to establish an infringement on her fundamental Constitutional rights as a teacher.[1]

2. The District Court correctly determined that the 2022-23 and 2023-24 PNCPs were content neutral rules of general applicability such that Ms. Willey failed to establish an infringement on her fundamental Constitutional rights as a teacher[1].

## STATEMENT OF THE CASE

### I. Factual Background:

Appellant Ashley Willey is a mother to student, A.S. (the "Student"), who attended Black Butte High School within the District for the 2021-22 and 2022-23 school years. (FAC ¶ 12; App. Vol. I at 0152.) During the 2021-22 school year, the District had no policy or procedure – official or unofficial – that governed the use

[1] The Willeys propose a third issue for review that is functionally identical to their first proposed issue. The District believes only two issues are properly before the Court.

The Willeys propose a third issue for review that is functionally identical to their first proposed issue. The District believes only two issues are properly before the Court.

## STATEMENT OF THE CASE

### I. Factual Background:

Appellant Ashley Willey is a mother to student, A.S. (the "Student"), who attended Black Butte High School within the District for the 2021-22 and 2022-23 school years. (FAC ¶ 12; App. Vol. I at 0152.) During the 2021-22 school year, the District had no policy or procedure – official or unofficial – that governed the use of a student's chosen name or pronoun by District staff. (App. Vol. 3 at 457, 464-65, 564, 596, fn.16.) During the 2021-22 school year, the Student requested of at least two District teachers, Chelsea Lund and Jennifer Copeland, that she be referred to by an alternate nickname. (App. Vol. 3, 0455, 0464) (each testifying that the reason they called the Student by the chosen nickname was because she asked them to.) Another teacher, Clif Clifton, testified that he used the alternate nickname when referring to the Student because he "heard and saw other students doing it." (App. Vol. 3 at 0461) It is unclear whether any District staff ever referred to the Student by alternate pronouns, though the District concedes it is possible they did so. Regardless, any such references to the Student during the 2021-22 school year, whether through nicknames or pronouns, were done without the District's knowledge and were not pursuant to any District policy or procedure.

On or about March 29, 2022, Ms. Willey attended a district-wide training where she communicated with District teachers Jennifer Copeland and Chris Clifton. (FAC ¶¶ 31-35; App. Vol. 1, 0155). Neither Ms. Copeland nor Mr. Clifton had any knowledge of the conversation, but how it transpired much as Ms. Willey describes in her First Amended Complaint. The allegations are that at the training Ms. Willey asked the teachers if they knew her daughter. Id. Upon showing them a picture of the Student, the teachers responded that they knew her by an alternate name starting with "C." Id. Thus, no dispute exists that the first time Ms. Willey inquired whether teachers so much as knew her daughter, the teachers volunteered the information that they knew her by an alternate name. No evidence exists that at any point Ms. Willey was lied to or

High School at that time. Mr. Audevart's correspondence with the Student, at least arguably, violated District Policy Manual Code GBH, Section G which provides that "staff members shall not exceed their level of training or expertise by attempting to counsel, assess, diagnose, or treat a student's personal problem relating to sexual behavior, substance abuse, mental or physical health and/or family relationships but, instead, shall refer the student to the appropriate professional or agency for assistance." (App. Vol. III, 0507-10) Mr. Audevart's communications and potential violation of District policy were unknown to the District until the emails came to light during discovery in the underlying matter.

On August 15, 2022, the District's Special Services Department adopted the SCSD#1 Special Services Non-Negotiables which is a document setting forth the department's expectations of its staff for the upcoming school year. (App. Vol. II, 0366-69) The 2022-23 Non-Negotiables contained a Preferred/Chosen Names Procedure (the "2022-23 PNCP"). The 2022-23 PNCP required staff to honor all student requests to be referred to by alternate names or pronouns. Ms. Willey expressed to Assistant Superintendent and Human Resources Director, Nicole Bolton, that she disagreed with the procedure in general terms. (App. Vol. II, 0399.) Ms. Bolton advised Ms. Willey to speak to her direct supervisor, Kyis Cundall. Ms. Cundall informed Ms. Willey that if she were faced with a situation where a student requested she use an alternate name or pronoun that she could "tell the

student that [she] needed to go by what was in Powerschool." *Id.* The name used in Powerschool matches the name on the student's birth certificate. Thus, when Ms. Willey expressed general disagreement with the PNCP she was offered an alternative course of action that would not conflict with her religious beliefs. No evidence exists that Ms. Willey ever requested the District grant a specific accommodation for her religious beliefs or was faced with a situation where those beliefs were potentially in conflict with the PNCP during the 2022-23 school year.

On August 14, 2023, the District's Special Services Department adopted a revised version of the SCSD#1 Special Services Non-Negotiables to further clarify several requirements including those of the 2023-24 PNCP. (App. Vol. II, 0374-78). The 2023-24 Non-Negotiables contained a revised version of the PNCP that expressly stated that parents were to be informed of a student's decision regarding chosen names and/or pronouns upon request. *Id.* The 2023-24 Procedure expressly provided for reasonable accommodation for any personnel who could not follow the Procedure for any reason. *Id.* Ms. Willey never requested religious accommodation under the 2023-24 PNCP.

Ms. Willey never used a student's alternate name or pronoun during her employment for the District. (App. Vol. II, 0358, 0361-63). Ms. Willey has never been subject to any form of discipline by the District for failing to use a student's preferred name or pronouns. *Id.*

follow the Procedure for any reason. Id. Ms. Willey never requested religious accommodation under the 2023-24 PNCP.

In summary, no evidence exists that the Student was ever referred to by alternate names or pronouns pursuant to any District policy or procedure. No evidence exists that the Student's use of alternate names or pronouns was ever withheld or concealed from the Willeys. The only evidence in the record is that the first time Ms. Willey so much as asked if teachers at the high school knew the Student, they volunteered the information regarding her choice of name. No evidence exists that, with the District's knowledge, any District staff referred to the Student by an alternate name or pronoun after Ms. Willey's March 29, 2022 request not to do so. The only evidence of such a reference comes from an email exchange between the Student and her former junior high teacher that the Willeys concede violated District policy.

Further, no evidence exists that Ms. Willey was ever required to use alternate names or pronouns for any student, that she was disciplined for not doing so, or ever requested a specific religious accommodation for her beliefs when or if the situation arose. The only evidence in the record is that when Ms. Willey expressed disagreement with the PNCPs, her direct supervisor provided her with an alternative course of action that comports with her alleged religious beliefs. Based on those undisputed facts, the District cannot have infringed upon Ms. Willey's religious freedom.

Ms. Willey never used a student's alternate name or pronoun during her employment for the District. (App. Vol. II, 0358, 0361-63). Ms. Willey has never been subject to any form of discipline by the District for failing to use a student's preferred name or pronouns. Id.

In summary, no evidence exists that the Student was ever referred to by alternate names or pronouns pursuant to any District policy or procedure. No evidence exists that the Student's use of alternate names or pronouns was ever withheld or concealed from the Willeys. The only evidence in the record is that the first time Ms. Willey so much as asked if teachers at the high school knew the Student, they volunteered the information regarding her choice of name. No evidence exists that, with the District's knowledge, any District staff referred to the Student by an alternate name or pronoun after Ms. Willey's March 29, 2022 request not to do so. The only evidence of such a reference comes from an email exchange between the Student and her former junior high teacher that the Willeys concede violated District policy.

Further, no evidence exists that Ms. Willey was ever required to use alternate names or pronouns for any student, that she was disciplined for not doing so, or ever requested a specific religious accommodation for her beliefs when or if the situation arose. The only evidence in the record is that when Ms. Willey expressed disagreement with the PNCPs, her direct supervisor provided her with an alternative course of action that comports with her alleged religious beliefs. Based on those undisputed facts, the District cannot have infringed upon Ms. Willey's religious freedom.

## II. Procedural Background:

The Willeys filed the underlying action on April 20, 2023, alleging violations of their constitutional rights under 42 U.S.C. § 1983. (App. Vol. I, 0020). The following day the Willeys moved for a preliminary injunction blocking the District from implementing the 2022-23 PNCP among other items. The District Court partially granted the Willeys' request for a preliminary injunction to the extent the District, in the absence of reasonable concern of physical harm or abuse,

required its staff to either not respond or lie to a parent's inquiry regarding their
Willeys failed to produce evidence of a 2021 Policy, or that the Student was ever
child. The District, having never imposed such a requirement, was unaffected by
referred to by an alternate name or pronoun pursuant to the 2022-23 PNCP.
the injunction.

The Willeys failed to produce evidence that the District knew or should have
On June 29, 2023, the District filed a motion to dismiss Plaintiff's
known of their religious convictions, or that the District took any action that caused
Complaint. Contrary to the Willeys' statement of procedural history in their
the Willeys to violate their right to religious expression.
Opening Brief, the District Court never ruled on the substance of the District's
motion to dismiss. See Opening Brief, pp. 16-17. Rather than respond to the
Even if they had produced such evidence, the Willeys cannot establish that the
District's Motion, the Willeys filed their First Amended Complaint ("FAC") on
District knew any of its staff referred to the Student by alternate names or pronouns,
July 20, 2023. The District Court then denied the District's first motion to dismiss
or that the District had an affirmative duty to notify them of that use had it been
as moot.
made aware of the same. No court has ever required state actors – particularly in the

## CONCLUSION

absence of a request - to proactively police and enforce privately held religious

No genuine dispute of material fact exists as to any of the Willeys' claims.
beliefs on behalf of third parties. The District Court correctly held that doing so
Indeed, the Willeys failed to produce evidence sufficient to support their claims.
would turn the First Amendment on its head.
The Willeys failed to produce evidence of a 2021 Policy, or that the Student was

Ms. Willey failed to establish that the 2022-23 and 2023-24 PNCPs were not
ever referred to by an alternate name or pronoun pursuant to the 2022-23 PNCP.

The Willeys failed to produce evidence that the District knew or should have
content neutral laws of general applicability subject to rational basis review. Nor
known of their religious convictions, or that the District took any action that
did Ms. Willey establish facts sufficient to find that the District failed to reasonably
caused the Willeys to violate their right to religious expression.
accommodate her religious beliefs. The opposite is true. Ms. Willey testified that

Even if they had produced such evidence, the Willeys cannot establish that
her immediate supervisor told her she could refer to students by the names found in
the District knew any of its staff referred to the Student by alternate names or
Powerschool, i.e. the names on their birth certificates. Therefore, the only evidence
pronouns, or that the District had an affirmative duty to notify them of that use had
it been made aware of the same. No court has ever required state actors –
in the record is that the District reasonably accommodated Ms. Willey's beliefs.
particularly in the absence of a request – to proactively police and enforce privately

held religious beliefs on behalf of third parties. The District Court correctly held Because the 2022-23 and 2023-24 PNCP's were content neutral and of general that doing so would turn the First Amendment on its head.
applicability, the District satisfied rational basis review because it had a legitimate

Ms. Willey failed to establish that the 2022-23 and 2023-24 PNCPs were not governmental interest in complying with controlling law that prevented content neutral laws of general applicability subject to rational basis review. Nor discrimination against students based on gender identity.
did Ms. Willey establish facts sufficient to find that the District failed to reasonably accommodate her religious beliefs. The opposite is true. Ms. Willey testified that

WHEREFORE, the District Court properly granted summary judgment in her immediate supervisor told her she could refer to students by the names found in favor of the District. The District respectfully requests this Court affirm and uphold Powerschool, i.e. the names on their birth certificates. Therefore, the only evidence the District Court's *Order Granting Defendants' Summary Judgment Motion.* in the record is that the District reasonably accommodated Ms. Willey's beliefs.

Because the 2022-23 and 2023-24 PNCPs were content neutral and of

Respectfully submitted general applicability, the District satisfied rational basis review because it had a

/s/ L. Kathleen Chaney legitimate governmental interest in complying with controlling law that prevented
L. Kathleen Chaney, Esq., #6-3211 discrimination against students based on gender identity.
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889 WHEREFORE, the District Court properly granted summary judgment in
Facsimile: (303) 799-3700 favor of the District. The District respectfully requests this Court affirm and uphold
*Attorneys for Appellee* the District Court's Order Granting Defendants' Summary Judgment Motion.

Respectfully submitted,

s/ L. Kathleen Chaney

L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889
Facsimile: (303) 799-3700
Attorneys for Appellees

## STATEMENT OF COUNSEL AS TO ORAL ARGUMENT

STATEMENT OF COUNSEL AS TO ORAL ARGUMENT

Oral argument is not requested or required under Fed. R. App. P. 34(2)(a)-(c) because: (1) the appeal is frivolous; (2) the dispositive issues have been authoritatively decided; and (3) the facts and legal arguments are adequately presented in the briefs and record, and the decisional process would not be significantly aided by oral argument. *See Chung v. Washington Interscholastic Activities Ass'n*, 538 F. Supp. 3d 1170, 1175 (W.D. Wash. 2021) ("When a party has [had] an adequate opportunity to provide the trial court with evidence and a memorandum of law, there is no prejudice [in a refusal to grant oral argument." (quoting *Partridge v. Reich*, 141 F.3d 920, 926 (9th Cir. 1998)).

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## CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because:

[x] this brief contains 1,802 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f) and 10th Cir. R. 32(B).

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[x] this brief has been prepared in a proportionally spaced typeface using Typst in 14-point Liberation Serif.

Date: September 22, 2025.

/s/ L. Kathleen Chaney

L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889
Facsimile: (303) 799-8700
Attorneys for Appellees

2. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because:

[x] this brief has been prepared in a proportionally spaced typeface using Microsoft Word in 14 font size and Times New Roman font.

Date: September 22, 2025.

/s/ L. Kathleen Chaney

L. Kathleen Chaney, Esq., #6-3211
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889

CERTIFICATE OF DIGITAL SUBMISSION

CERTIFICATE OF DIGITAL SUBMISSION

I hereby certify that with respect to the foregoing:

I hereby certify that with respect to the foregoing:

(1) all required privacy redactions have been made per 10th Cir. R. 25.5;

(2) if required to file additional hard copies, that the ECF submission is an exact copy of those documents;

(1) all required privacy redactions have been made per 10th Cir. R. 25.5;

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(3) the digital submissions have been scanned for viruses with the most recent version of a commercial virus scanning program, Microsoft Defender Antivirus with security intelligence version dated September 22, 2025, and according to the program are free of viruses.

s/L. Kathleen Chaney

L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889
Facsimile: (303) 799-3700
Attorneys for Appellees

/s/ L. Kathleen Chaney

L. Kathleen Chaney, Esq., #6-3211
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889

## CERTIFICATE OF SERVICE

## CERTIFICATE OF SERVICE

I hereby certify that on September 22, 2025 a true and correct copy of the foregoing was filed with the Clerk of the Court using CM/ECF system and also served on the following:

I hereby certify that on this 22nd day of September 2025 a true and correct copy of the foregoing was filed with the Clerk of the Court using CM/ECF system and also served on the following:

Ernest G. Trakas (MO) #33813
Mary E. McAlister* (VA) #76057
Vernadette R. Broyles* (GA) #593026
CHILD & PARENTAL RIGHTS CAMPAIGN
5805 State Bridge Road, Suite 310
Johns Creek, GA 30097
Attorneys for Appellant

Ernest G. Trakas (MO) #33813
Mary E. McAlister* (VA) #76057
Vernadette R. Broyles* (GA) #593026
CHILD & PARENTAL RIGHTS CAMPAIGN
5805 State Bridge Road, Suite 310
Johns Creek, GA 30097
*Attorneys for Appellant*

By: /s/ *L. Kathleen Chaney*
L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889
Facsimile: (303) 799-3700
*Attorneys for Appellee*

By: s/ L. Kathleen Chaney
L. Kathleen Chaney, Esq., #6-3211
Eric D. Hevenor, Esq., #6-4435
4949 S. Syracuse Street, Suite 600
Denver, Colorado 80237
Telephone: (303) 799-8889
Facsimile: (303) 799-3700
Attorneys for Appellees